

25NNCV03419 25NNCV03419

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Case Number: 25NNCV03419 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Summary Judgment

Hearing Date: 8/7/26

CASE NO./NAME: 25NNCV03419/ Liapko v.

Carranza

Moving Party: Defendant Yadira Carranza

Responding Party: Plaintiff Artem Liapko

Notice: Sufficient

Ruling: DENY

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is a dog bite liability action. On October 31, 2024, on the premises of 9085 Arcadia Ave., San Gabriel, CA 91755 (the Premises), plaintiff Artem Liapko (Plaintiff) alleges that he was bitten by a dog allegedly belonging to defendant Yadira Carranza (Defendant) while delivering food through Uber Eats.

On May 19, 2025, Plaintiff filed a Complaint against Defendant alleging strict liability, negligence, and premises liability.

On May 15, 2026, Defendant filed the instant motion seeking summary judgment on the Complaint against Plaintiff. On July 7, 2026, Plaintiffs filed an opposition. On July 24, 2026, Defendant filed a reply.

LEGAL

STANDARD

In reviewing a motion for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

“[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) When a plaintiff seeks summary judgment, the plaintiff must produce admissible evidence on each element of each cause of action on which judgment is sought. (Code Civ. Proc., § 437c(p)(1).) The plaintiff is not required to disprove any affirmative defenses to discharge this burden. (Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co. (2009) 170 Cal.App.4th 554, 564-65.)

If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See Code Civ. Proc., § 437c, subd. (p)(2); see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849-50.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (Aguilar, *supra*, 25 Cal.4th at p. 855.)

“Once the [moving party] ... has met that burden, the burden shifts to the [non-moving party] ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The non-moving party may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (Ibid.) “If the [non-moving party] cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

The court must “liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party,” including “all inferences reasonably drawn therefrom.” (Yanowitz v. L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1037; Aguilar, *supra*, 25 Cal.4th at pp. 844-45.) “On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (Id. at p. 840; see also Weiss

v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

DISCUSSION

Defendant moves for summary judgment against Plaintiff on all causes of action in the Complaint on the grounds that Defendant is not the owner of the dog who bit Plaintiff, could not foresee the harm, and therefore did not owe a duty to Plaintiff. (Mot., p. 3.) Further, Defendant argues that because they do not own the dog the action is without merit. (Ibid.)

In order to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

"The owner of any dog is liable for the damages suffered by any person who is bitten by the dog while in a public place or lawfully in a private place, including the property of the owner of the dog, regardless of the former viciousness of the dog or the owner's knowledge of such viciousness." (Civ. Code, § 3342(a).)

"The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) "Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158, quotation marks omitted.)

Movant's
Burden

Defendant argues that they cannot be held strictly liable for Plaintiff's injuries because they did not own the dog that bit Plaintiff. (Mot., p. 5.) Further, Defendant argues that they cannot be

held liable under a theory of general negligence because they did not own the dog and did not have actual knowledge of the dog's dangerous propensities so Plaintiff cannot establish a duty. (Ibid.) Lastly, Defendant argues that Plaintiff cannot establish duty under a premises liability theory because Defendant did not own the dog and was not aware of the dog's propensities so they could not have expected the harm. (Mot., pp. 6-7.) Therefore, Defendant argues Plaintiff cannot establish duty under any stated cause of action and the Complaint is without merit. (Mot., pp. 7-8.)

Here, Defendant supplies their own declaration as evidence that they did not own, maintain, control, possess, supervise, or have custody of the dog that bit Plaintiff. Defendant's own declaration is the only evidence provided to establish lack of ownership, lack of knowledge of the dog's dangerous propensity, and lack of duty generally. In a motion for summary judgment, "the moving party's evidence must be construed strictly, in determining a 'triable issue' of fact." (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 838.) When attempting to disprove an element of a plaintiff's claim, defendant must demonstrate on undisputed facts, the lack of an essential element. (Ibid.) Here, Defendant's simple denial absent sufficient evidentiary support does not establish the absence of ownership or duty. Thus, Defendant has not established a lack of duty through this evidence and does not meet their burden for summary judgment. In addition, triable issues of material fact remain, including Defendant's relationship to the subject premises and the dog, her knowledge of the risk the dog posed, and whether she breached a duty of care owed to an invitee to the premises.

Accordingly, the motion for summary judgment is DENIED.

CONCLUSION
AND ORDER

Defendant Yadira Carranza's Motion for Summary Judgment is DENIED.

MOVING PARTY is to give notice and provide a proposed order consistent with this ruling within 15 days from this date.